

STATE OF COLORADO

DIVISION OF MINERALS AND GEOLOGY

Department of Natural Resources

1313 Sherman St., Room 215

Denver, Colorado 80203

Phone: (303) 866-3567

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August 25, 2003

Maureen Jacoby
Banks and Gesso, LLC
720 Kipling St., Suite 117
Lakewood, CO 80215

RE: CEMEX, Inc., Larimer Quarry; Permit No. M-1977-341
TR-01; Adequacy Letter

Dear Ms. Jacoby,

The Division received Technical Revision (TR-01) for the Larimer Quarry, Permit No. M-1977-341 operated by CEMEX, Inc. The revision was submitted as a result of the Division's inspection of December 6, 2002. The revision involves the retention of mine access roads and a substation on site.

Rule 3.1.11 of the Construction Materials Rules and Regulations state that any buildings or structures may, at the option of the Operator and the Landowner, remain on the affected land if such buildings or structures will not conflict with the post-mining land use and the structures conform to local building and zoning codes. The Division does not believe that the post-mining land use for the Larimer Quarry will need to change in order to retain the structures on the property because the structures will not interfere with the end land use of rangeland. However, in order for the Division to not hold CEMEX, Inc. responsible for the disturbance and reclamation of the structures, the operator will need to submit the following:

1. The operator must provide a signed, notarized letter from the landowner stating that the landowner accepts the proposed changes to the post mining land use and reclamation plan with the retention of the substation, roads and associated structures.
2. The operator will need to submit documentation to the Division that retention of the substation will not conflict with the post-mining land use of rangeland and that the structures conform to local building and zoning codes. Such documentation must be a letter from Larimer County stating that the existing substation will meet the zoning requirements and the approved post-mining land use.

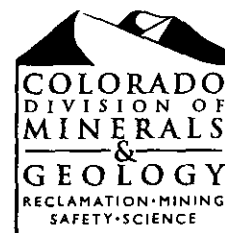
In your letter you state that if these changes are acceptable to the Division, then the total bond release should be approved. Please be aware that the Division denied the total release request (SL-01) due to the issues surrounding topsoil replacement, revegetation, erosion features and the retention of roads/substation. The operator will need to submit a new release request to the Division in order for the Division to consider releasing CEMEX from reclamation responsibility for the Larimer Quarry. Rule 4.16.1(3) states that the written notice requesting release shall be sent by Certified Mail and be separate from other types of communication to the office.

Please be advised that Division's decision due date is set for September 3, 2003. If you feel more time is needed to complete your reply, the Division can grant an extension to the decision date. This will be done upon receipt of a written waiver of your right to a decision by September 3, 2003 and request for additional time. This must be received no later than the deadline date. If you have any questions, please contact me at (303) 866-4943.

Sincerely,


Erica S. Crosby
Environmental Protection Specialist

cc: Carl Mount; DMG (via electronic transmission)
John Lohr; CEMEX, Inc.



Bill Owens
Governor

Greg E. Walcher
Executive Director

Ronald W. Cattany
Division Director
Natural Resource Trustee